

The Orissa Forest (Fire Protection) Rules, 1979

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State of Odisha - Act

The Orissa Forest (Fire Protection) Rules, 1979

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Rule THE-ORISSA-FOREST-FIRE-PROTECTION-RULES-1979 of 1979

Published on 24 October 1979

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The Orissa Forest (Fire Protection) Rules, 1979

Published vide Notification S.R.O. No. 1076/79-D-24.10.1979, O.G.E. No. 2211-D/19.11.1979

S.R.O. No. 1076/79-D-24.10.1979. - In exercise of the powers conferred by Clause (h) of Section 36 read with Clause (d) of Sub-section (1) of Section 82 of the Orissa Forest Act, 1972, (Orissa Act 14 of 1972

) the State Government do hereby make the following rules, namely :

1.

Short Title and Commencement.

(1)

These rules may be called The Orissa Forest (Fire Protection) Rules, 1979.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires-

(i)

Act means the Orissa Forest Act, 1972;

(ii)

Protected Forest means any land to which the provisions of Chapter IV of the Act have been declared to be applicable by the State Government by notification under Section 33 of that Act, and includes any forest or land deemed to be a protected forest under Section 91 of the said Act;

(iii)

Reserve Forest means any land constituted and declared as reserved forest by the State Government under Chapter II of the Act or deemed as such under Section 81 thereof and includes any forest or land deemed to be a reserved forest under Section 91 of that Act.

(2)

All other words and expressions used but not defined in these rules shall have the same meanings respectively assigned to them in the Act.

3.

Prohibition under the Rules.

(1)

No person shall set fire to any part of a reserved forest or a protected forest, and no person shall set fire in the vicinity of a reserved or protected forest, so as to cause damage to any forest produce therein.

(2)

Except as such places, as may be notified locally by the Divisional Forest Officer from time to time, no person shall kindle any fire or leave any fire burning upon any public or private road or path which adjoins or passes through a reserved or protected forest.

(3)

No burning wood or fire brands for torches shall be carried within or along the boundaries of any reserved or protected forest between the period from the 1st November to 30th June of any year. Smoking shall also be prohibited during the aforesaid period within any reserved or protected forests save as authorised camping grounds.

(4)

No fire shall be lighted within or along the boundary of a reserved forest or a protected forest except in camping grounds notified as such by the Divisional Forest Officer. Persons using such grounds shall light fire in such a way as not to endanger the forest or any building or shed, and shall extinguish all fire before they leave the place.

4.

Precautions.

(1)

Any person collecting any inflammable forest produce such as grass, dry leaf, bamboo, dry twigs and the like, and any holder of permit or lease collect such forest produce, shall stock it in an open space at such reasonable distance from the reserved or protected forests as the Divisional Forest Officer may, by general or special order, prescribes, and shall isolate the stock in such manner that if they take fire, the fire shall not spread to the surrounding areas or endanger any forest.

(2)

Any person desirous of burning, in lands in the close vicinity of any reserved or protected forest, any wood, grass or brush-woods or the inflammable material shall collect such materials into heaps and burn it heap by heap in such a manner that the resulting fire shall not extend to the surrounding area or endanger the forest, provided that he shall not burn such materials when a high wind is blowing.

5.

Duty and Responsibilities.

- It shall be the duty of every person residing in the vicinity of any reserved or protected forests, whether be a

right-holder or not to intimate forthwith the occurrence of any fire in the forest or in the vicinity thereof, within his knowledge, to the nearest Forest Officer, and whether or not so required by any Forest officer, to take steps to-

- (i)
extinguish any such fire, and
- (ii)
prevent by all lawful means within his capacity the spread of any such fire into the forest,

6.

Exemption.

(1)

Nothing contained in these rules shall operate during the period between the 1st July and the 31st October of any year.

(2)

In the interest of forest conservancy and management, every Forest Officer may start a counter fire to control the forest fire from extending further, or set fire to, the debt is collected on the fire lines or to do a controlled burning in any forest for the purpose of inducing natural regeneration in the area or for the purpose of raising any departmental plantation etc.

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Provided that such exemption shall not apply to setting of fire to a forest for the purpose of promoting the growth of Kendu leaves.

7.

Repeals and Savings.

- All rules, orders and instructions corresponding to the provisions of these rules and in force immediately prior the commencement thereof are hereby repealed :

Provided that any order made, action taken and things done under the rules, order or instructions so repealed shall be deemed to have been made, done or taken under these rules.

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